

REPUBLIC OF THE PHILIPPINES
DEPARTMENT OF LABOR AND EMPLOYMENT
MANILA

DEPARTMENT ORDER NO. 40-E-05
Series of 2005

**AMENDING RULE IX, BOOK OF THE OMNIBUS RULES
IMPLEMENTING THE LABOR CODE OF THE
PHILIPPINES, AS AMENDED BY DEPARTMENT ORDER
NO. 40-03, SERIES OF 2003**

Section 1. Pursuant to Article 5 of the Labor Code, as amended, and to clarify the appeal procedure in certification election protest, Rule IX, Book V of the Omnibus Rules Implementing the Labor Code, as amended by Department Order No. 40-03, series of 2003, is hereby amended incorporating therein new sections, which shall read as follows:

"Section 21. Appeal; finality of decision. – The decision of the Med-Arbitrator may be appealed to the Secretary within ten (10) days from receipt by the parties of a copy thereof.

The appeal shall be under oath and shall consist of a memorandum of appeal, specifically stating the grounds relied upon by the appellant with the supporting arguments and evidence.

Where no appeal is filed within the ten-day period, the order/decision shall become final and executory and the Med-Arbitrator shall enter this fact into the records of the case.

"Section 22. Where to file appeal. – The memorandum of appeal shall be filed in the Regional Office where the petition originated, copy furnished the contending unions and the employer, as the case may be. Within twenty-four (24) hours from receipt of the appeal, the Regional Director shall cause the transmittal thereof together with the entire records of the case to the Office of the Secretary.

"Section 23. Period to Reply. – A reply to the appeal may be filed by any party to the petition within ten (10) days from receipt of the memorandum of appeal. The reply shall be filed directly with the Office of the Secretary.

"Section 24. Decision of the Secretary. – The Secretary shall have fifteen (15) days from receipt of the entire records of the petition within which to decide the appeal.

The decision of the Secretary shall become final and executory after ten (10) days from receipt thereof by the parties. No motion for reconsideration of the decision shall be entertained.

"Section 25. Transmittal of records to the Regional Office. – Within forty-eight (48) hours from notice of receipt of decision by the parties and finality of the decision, the entire records of the case shall be remanded to the Regional Office of origin for implementation. Implementation of the decision shall not be stayed unless restrained by the appropriate court."

Section 2. **Effectivity.** – This Order shall take effect fifteen (15) days after its publication in two (2) newspapers of general circulation.

Manila, Philippines, 30 November 2005.


PATRICIA A. STO. TOMAS
Secretary

P.S. Dec. 27, 2005

The Philippine Star